Course: Key points

In this course, we covered many important topics related to sexual harassment in the workplace. Let us review some of the key points and takeaways.

- The Sexual Harassment of Women at Workplace (Prevention, Prohibition, and Redressal) Act, 2013, or POSH Act, provides a comprehensive legal framework to address and prevent sexual harassment in the workplace.
- The POSH Act mandates the establishment of Internal Committee (IC), defines sexual harassment, and sets out procedures for complaints and disciplinary actions.
- Sexual harassment is illegal and has severe adverse effects on individuals' emotional, psychological, and physical well-being, as well as on the overall work environment and productivity of the organization.
- Sexual harassment is based solely on the subjective experience of the complainant, not the alleged perpetrator’s intent.
- Sexual harassment is defined as behavior or acts that are unwelcome and of a sexual nature.
- Sexually inappropriate behavior or acts can be verbal, non-verbal, or physical in expression.
- Both complainants and alleged perpetrators may be anyone, regardless of gender identity or sexual orientation. Company policies should be inclusive and protect all employees.
- It is vital to know and comply with your company policy on sexual harassment and the process led by your IC. Employees should be familiar with the protocols for addressing complaints.
- Retaliation against complainants or participants in the investigation will not be tolerated. Interim relief, such as paid leave or reassignment, is available to complainants during the official inquiry process.
- Prevention and reporting of sexual harassment are everyone's responsibility. Employees should participate in training, report incidents, and support complainants while maintaining confidentiality and neutrality.
- The workplace under the POSH Act includes not only traditional workspaces but also any location visited by an employee arising out of or during the course of employment, such as during business trips, transportation provided by the employer, and work-related events.
- The IC is responsible for handling and investigating complaints, recommending actions, creating awareness, and advising on preventive measures.